

1.

CASE #	CASE NAME	HEARING NAME
CVRI2406744	CRISTESCU vs WELLS FARGO BANK, N.A.	MOTION TO COMPEL DEPOSITION OF PLAINTIFF AND FOR TERMINATING SANCTIONS OR, IN THE ALTERNATIVE, ISSUE EVIDENTIARY SANCTIONS AGAINST PLAINTIFF, IN ADDITION TO MONETARY SANCTIONS

Tentative Ruling:

Grant the motion to compel Plaintiff's deposition. Order Plaintiff to appear for and participate in her videotaped deposition within 30 days of this order. Award Wells Fargo monetary sanctions in the reduced but reasonable amount of \$780 (\$360/hour x 2 hours + \$60 filing fee.) Deny the request for terminating, evidentiary, or issues sanctions.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2601892	YAMMOUT vs SHULTZ	DEMURRER ON COMPLAINT

Tentative Ruling:

Plaintiff Bassam Tawfik Yammout alleges that on 3/15/24, Defendant David Zakaraiah Shultz, in a vehicle owned by him and Defendant Jennel Shultz, caused a car accident. On 3/24/26, Plaintiff filed the complaint for motor vehicle and general negligence.

Defendants demur to the complaint on the grounds that the complaint fails to state facts sufficient. They argue that the 2 year statute of limitations (Code Civ. Proc. § 335.1) bars the claim.

Plaintiff points out that Plaintiff has filed motion to deem complaint filed, requesting that the court deem the action filed earlier when Plaintiff originally attempted to file the complaint. Therefore, it argues that the statute of limitations does not on its face appear to be barred by the statute of limitations. Alternatively, it requests leave to amend.

Separately, Plaintiff moves to nunc pro tunc the complaint to the original submission date of 3/6/26, which the court rejected due to a venue issue. Plaintiff promptly investigated the venue issue and corrected the filing.